

Court No. - 3

Case :- WRIT - C No. - 12417 of 2022

Petitioner :- Smt. Reeta Ojha

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- P.K. Upadhyay, Kalpna Upadhyay

Counsel for Respondent :- C.S.C., Krishna Agarawal, Narendra Kumar Tiwari

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

1. Heard learned counsel for the petitioner, learned Standing Counsel for the State-respondent and Shri N. K. Tiwari, learned counsel for the respondent nos. 5 and 6.

2. This writ petition has been filed praying for the following reliefs :

"A. Issue a writ, order or direction in the nature of certiorari to quash the citation notice dated 09.08.2021 (Annexure no. 3) issued by respondents.

B. Issue a writ, order or direction in the nature of mandamus directing the respondents not to recover the amount of Rs. 11,44,597/- pursuant to the citation notice dated 09.08.2021 as well Rs.13,21,461/- mentioned in the bill dated 13.03.2022 issued by respondents.

C. Issue a writ, order or direction in the nature of mandamus directing respondent no. 2 to decide the application dated 30.03.2022 (Annexure no. 5) filed by the Petitioner and further directing to respondents to connect the electricity of the petitioner which is illegally disconnected on 15.03.2022 by the respondent no. 6 of the petitioner in accordance with law within a stipulated period."

3. Learned counsel for the respondent no. 5 and 6/Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

4. In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is **disposed of** giving liberty to the petitioner to submit his objection under Para 6.5 of U.P. Electricity Supply Code, 2005 before the respondent no. 5 within four weeks from today alongwith a certified copy of this order. In the event, such an objection is submitted within the stipulated period, it shall be decided by the respondent no. 5 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

5. For a period of eight weeks or till the disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand/notice.

Order Date :- 4.7.2022

A. V. Singh